

[Your Name or "Anonymous Requester"] [Your Address – Optional, but required by OOR for formal appeals] [City, State, ZIP] [Your Email – Use the same burner email from your original request] [Date]

Office of Open Records 333 Market Street, 16th Floor Harrisburg, PA 17101-2234 Email: openrecords@pa.gov

Subject: Formal Appeal – Right-to-Know Request Denial / Deemed Denial Agency:

Department of Human Services (DHS)

To the Appeals Officer:

Pursuant to the Pennsylvania Right-to-Know Law (65 P.S. §§ 67.101–67.1305), I am filing a formal appeal regarding my RTK request submitted to the Department of Human Services on [Date of Original Request].

1. Status of Request: [Choose one of the following and delete the other]

- **Deemed Denied:** The agency failed to respond within the mandated five (5) business days, nor did they invoke a valid 30-day extension. The request is therefore deemed denied.
- **Denied:** The agency formally denied my request on [Date of Denial], citing the following exemptions: [List exemptions cited by DHS].

2. Description of Requested Records: In my original request, I sought:

- [Insert the exact text of your original requested records here]

3. Grounds for Appeal: The requested records are public records under the RTKL and do not qualify for the exemptions cited by the agency. Specifically:

- The records relate to the financial oversight and contractual obligations of managed-care organizations (MCOs) operating under state programs, which inherently involve the disbursement of public funds.
- [If they cited "internal predecisional deliberation"]: The requested audit reports and MLR calculations are factual, financial data, not deliberative policy-making materials.
- The agency has not met its burden of proof to demonstrate that these records are exempt from disclosure.

4. Attachments: As required by OOR procedures, I have attached:

1. A copy of my original RTK request.
2. A copy of the agency's response (if applicable).

I request that the Office of Open Records order the Department of Human Services to release the requested records in their entirety.

Sincerely,

[Your Name or "Anonymous Requester"]